

IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA
SITTING IN ITS OCTOBER TERM, A.D. 2025

BEFORE HIS HONOR: YAMIE QUIQUI GBEISAY, SRCHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE..... ASSOCIATE JUSTICE
BEFORE HIS HONOR: YUSSIF D. KABA..... ASSOCIATE JUSTICE
BEFORE HER HONOR: CEATNEH D. CLINTON JOHNSON..... ASSOCIATE JUSTICE
BEFORE HIS HONOR: BOAKAI N. KANNEH..... ASSOCIATE JUSTICE

Mr. Mustapha Tunkara, President of the Diamond Dealers Association)
Dealers Association, of the City of Monrovia, Liberia.....Informant)

Versus

) Bill of Information
)

His Honor J. Boima Konton, Assigned Circuit Judge, Sixth Judicial)
Circuit, Civil Law Court, Montserrado County, the Sheriff Sixth Judicial)
Circuit, Civil Law Court, Montserrado County, T. David Sluward and)
Abraham Kamara, Holders of Class "C" Mining License, Agency Claim)
Claim #12F/Survey, Smith Town, Gbarma Mining Agency, Gbarma)
Statutory District, Gbarpolu County, Liberia; and Mohammed Kamara)
commonly known as "JR", also of Smith Town, Gbarma Statutory)
District, Gbarpolu County, Republic of LiberiaRespondents)

GROWING OUT OF THE CASE:

The Minister of Mines and Energy, his Deputies and Assistant Minister,))
Directors, and all other persons acting and operating under their)
their authority and Mustapha Tunkara, president of the Diamond)
Dealers Association.....Appellants)

Versus

) Appeal
)

T. David Sluward and Abraham Kamara, Holders of Class "C" Mining)
Licence, Agency Claim #12F/Survey, Smith Town, Gbarma Mining)
Agency, Gbarma Statutory District, Gbarpolu County, Liberia and)
Mohammed Kamara Commonly known as "JR", also of Smith Town,)
Gbarma Statutory District, Gbarpolu County, Republic of Liberia)
.....Appellee)

Heard: November 11, 2025

Decided: December 19, 2025

MR. CHIEF JUSTICE GBEISAY DELIVERED THE OPINION OF THE COURT

On August 14, 2015, this Court issued its mandate directing the Government of Liberia, through the Ministry of Lands, Mines, and Energy, to restitute to the respondent a 53.34-carat diamond or to pay its market value. It is the execution of said mandate by the Sixth

Judicial Circuit, Civil Law Court, for Montserrado County that gives rise to the present Bill of Information.

The Informant contends that he is the President of the Diamond Dealers Association; that a 53.34-carat diamond was found by Mohammed Kamara, alias "Jr.", who sold the same to Baku and Amara; that the former Minister of Mines and Energy requested him to act as mediator until the conclusion of the matter. He asserts that he was instructed by the said minister to ensure that US\$50,000.00 was deposited into Government revenue, that all royalties due the Government be paid upon export, and that the dealer obtain all required legal documentation, all of which he claims to have complied with. The Informant further avers that Mohammed Kamara received US\$90,000.00 and two houses as the consideration for the diamond, and thus had no legal basis to demand its value again. He states that he was never served with a writ of summons or any pleading in the underlying action, and therefore does not understand how his name appeared in the caption before the trial court. He alleges that he was arrested and detained for several hours by order of the trial court to compel him to pay 25% of the value of the diamond, which he characterizes as a wrongful and illegal enforcement of this Court's mandate. He asserts that he was never made a party at the Ministry of Mines and Energy, did not file a bill of exceptions, and did not appear or participate before this Court in any capacity. He therefore prays that his Bill of Information be granted and that his name be ordered removed from the caption of the case. Regarding this bill of information, two responses were submitted: one by the Government of Liberia and one by the respondent/appellee in the main case. This Court finds that there is no legal ground for the Government of Liberia to respond in these proceedings. The Government, through the Ministry of Lands, Mines and Energy, was the party found liable and ordered to return the diamond or its value. It is therefore illogical for the Government to now try to join the respondent/appellee in enforcement efforts against the Informant when the Government itself was deemed liable. Even if the Government had pursued action against its agents it believed acted beyond their authority, it would still remain liable. Therefore, the response filed by the Government is not considered, as this Court has declared the 53.34-carat diamond to be private property.

In their returns to the bill of information, the respondents/appellees assert that the Informant and his associates were parties in the lower court, as shown by the ruling denying the Informant's motion to dismiss their petition for judicial review. They claim that the Informant acted as a mediator in the diamond dispute, took custody of the diamond, exported it, and sold it. They also argue that there is no evidence of the former minister's instructions

authorizing the Informant to handle, ship, or sell the diamond; that he bypassed the proper Kimberley certification process; and that he falsely claimed ownership to obtain an export voucher while the case was still pending. Additionally, they deny that Mohammed Kamara received two houses as part of the sale. Lastly, they contend that the Informant has failed to provide any grounds for filing a Bill of Information.

Both parties have raised several factual disputes which this Court, sitting on a Bill of Information, is not competent to address. The only issue properly before us is: Whether a Bill of Information will lie under the circumstances of this case.

The Informant contends that the trial court improperly executed this Court's mandate by arresting and detaining him to compel the payment of 25% of the diamond's value. He maintains that he was never a party to the underlying judicial review proceedings; that he did not appeal from the final judgment of the trial court; and that, therefore, this Court's mandate cannot be enforced against him. He further argues that the Government of Liberia, which took the appeal, did not represent him, and thus its appeal cannot bind him.

The records reveal that at the commencement of the judicial review proceedings, the Informant was not served with process to bring him under the trial court's jurisdiction. While the petition was pending, the Informant voluntarily filed a motion to dismiss, thereby submitting himself to the trial court's jurisdiction. After the said motion was heard and denied, the informant took no further steps. When final judgment was rendered, the Government, through the Ministry of Lands, Mines and Energy, perfected an appeal to this Court; the Informant did not except to the judgment, did not announce an appeal, and did not file a bill of exceptions, appeal bond, or notice of completion of appeal. Under Civil Procedure Law Rev. Code 1:51.4, for this Court to acquire appellate jurisdiction over a party, that party must comply with the appeal requirements therein. The Informant did not comply with any of these requirements.

The appearance of the Informant's name in this Court's opinion and mandate is based on the trial court records transmitted to this Court. Those records establish that the Informant remained a party to the suit and subject to the trial court's final judgment after his motion to dismiss the original action was denied. On appeal, this Court affirmed the judgment of the trial court and ordered its enforcement against the parties thereto. Because the Informant was affected by the trial court's judgment, his failure to appeal or to perfect an appeal does

not preclude enforcement against him. It is the final judgment of the trial court not this Court's judgment that is being enforced against the Informant.

The arrest and detention of the Informant were not the result of an improper execution of this Court's mandate. The original record from which the mandate issued shows that the Informant did not appear before this Court on appeal, did not file a bill of exceptions, an appeal bond, or a notice of completion of appeal, and was not served with any notice of assignment. When a party to an action fails to appeal a final ruling of the trial court or to perfect an appeal to this Court, and the trial court's judgment is thereafter affirmed, enforcement of that judgment against the non-appealing party cannot be deemed improper.

Under Rule IV of the Revised Rules of the Supreme Court, a Bill of Information lies only to prevent or correct an irregular or improper execution of this Court's mandate, or to address disrespect or interference with the authority of this Court. In *Gbae v. Geeby*, 14 LLR 147 (1960), this Court held that a Bill of Information will lie to restrain enforcement of a judgment when the execution thereof is irregular or improperly directed.

The Informant averred and the records being supportive of the averment that he was not a party to the appeal and never came under this Court's appellate jurisdiction, his arrest and detention based on the enforcement of the trial court judgment cannot be considered unlawful. The Bill of Information is limited in scope. Its purpose is not to reopen factual disputes or to re-litigate matters concluded by the trial court, but only to correct or prevent improper execution of this Court's mandate. Nothing in the informant's Bill of Information that confers upon him standing to revisit the underlying judgment or to invoke this Court's extraordinary jurisdiction.

WHEREFORE, AND IN VIEW OF THE FOREGOING, the Bill of Information is denied. The Clerk of this Court is ordered to send a Mandate to the court below commanding the judge presiding therein to resume jurisdiction and proceed consistent with the Judgment of this Opinion. Costs disallowed. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELLOR E. GIDU JOHNSON APPEARED FOR THE INFORMANT. COUSELLORS SAYMA SYRNUIS CEPHUS, KABINEH M. JA'NEH AND M. WILKINS WRIGHT APPEARED FOR THE RESPONDENT.

Information denied.